

HEADNOTE

- “1. R. 9.3 (a) RoP empowers the court to extend time limits. However, this possibility should only be used with caution and only in justified exceptional cases.*
- 2. Such an exceptional case regularly exists when access to a written submission in unredacted form was initially restricted to the representatives due to a request for protection of confidential information (R. 262A RoP). Only by granting access to the relevant information to the skilled employees of the party can it be ensured that the affected party can exchange information with its representatives, develop a strategy taking into account the arguments of the other party, and if necessary provide technical and/or commercial input.*
- 3. The Rules of Procedure provide for a period of two months for filing the reply to the counterclaim containing the invalidity counterclaim (R. 29 (a) RoP). This period must be available to the claimant and its representatives in order to jointly develop a strategy based on all the facts and to file written submissions on the basis of this strategy.*
- 4. The same applies to the invalidity counterclaim. The principles of fair proceedings and the right to be heard require that a party must be able to reconcile its arguments regarding (non-)infringement with those regarding validity and possible amendments to the claims, in particular in its first submission on validity.”*

COURT
Local Division in Düsseldorf

PROCEEDINGS
Infringement action

PATENT
EP 3 490 258 B1

METHOD AND RECORDING MEDIUM
STORING CODED IMAGE DATA

KEYWORDS

Extension of term

Exception

Trade secret protection

Rule 262A request

Restricted access

Rule 9 Powers of the Court

SUMMARY

The Local Division in Düsseldorf ruled on an infringement action. The patent at issue relates to a method and recording medium storing coded image data. According to the headnotes of the decision, the court may extend time limits under Rule 9.3(a) of the Rules of Procedure, but only in justified exceptional cases and with considerable restraint. When a party initially receives a written submission in redacted form due to confidentiality protection, granting full access to the party's skilled employees constitutes such an exceptional case, as it enables the affected party to develop strategy and coordinate with its representatives. The Rules of Procedure establish a two-month deadline for filing a reply to a counterclaim containing invalidity challenges, and this period must be genuinely available to both the claimant and its representatives to jointly develop strategy and prepare written submissions. Fair proceedings and the right to be heard require that a party must be able to align its arguments on infringement with those on validity and possible claim amendments, particularly in its first submission addressing validity.